

**Telecom Regulatory Authority of India**  
**(Broadcasting & Cable Division)**

**ORDER**

Dated: 20<sup>th</sup> September 2021

**Subject: Designation of the Testing and Certification Agency for Conditional Access System (CAS) and Subscriber Management Systems (SMS) under sub-regulation (1) of regulation 4A of the Telecommunication (Broadcasting and Cable) Services Interconnection (Addressable Systems) Regulations, 2017.**

No. RG-1/2/(3)/2021-B AND CS(2) - Whereas the Telecom Regulatory Authority of India (hereinafter referred to as the "Authority"), established under sub-section (1) of section 3 of the Telecom Regulatory Authority of India Act, 1997 (24 of 1997) (hereinafter referred to as "TRAI Act"), has been entrusted to discharge certain functions, inter-alia, to regulate the telecommunication services; lay-down the standards of quality of service to be provided by the service providers and ensure the quality of service and conduct the periodical survey of such service provided by the service providers so as to protect interest of the consumers of telecommunication service;

2. And whereas, the Central Government, in the Ministry of Communications and Information Technology (Department of Telecommunications), vide its Notification No. 39, ---

(a) issued, in exercise of the powers conferred upon it by proviso to clause(k) of sub-section (1) of section 2 of the TRAI Act, and

(b) published under notification No. S.O. 44 (E) dated 9th January, 2004 in the Gazette of India, Extraordinary, Part II, Section 3 – sub-section (ii) ---

has notified broadcasting services and cable services to be telecommunication service;

3. And whereas the Authority notified a new regulatory framework for Broadcasting and Cable TV services provided through addressable systems, encompassing the following: -



- (a) *the Telecommunication (Broadcasting and Cable) Services (Eighth)(Addressable Systems) Tariff Order, 2017 dated 3rd March, 2017;*
- (b) *the Telecommunication (Broadcasting and Cable) Services Interconnection (Addressable Systems) Regulations, 2017 dated 3rd March, 2017 (hereinafter referred as Interconnection Regulations, 2017); and*
- (c) *the Telecommunication (Broadcasting and Cable) Services Standards of Quality of Service and Consumer Protection (Addressable Systems) Regulations, 2017 dated 3rd March, 2017;*

4. And whereas the Authority has notified The Telecommunication (Broadcasting and Cable) Services Interconnection (Addressable Systems) (Third Amendment) Regulations, 2021 on 11th June, 2021 and incorporated new regulation 4A and Schedule IX in the Interconnection Regulations, 2017;

5. And whereas sub-regulation (1) of the newly inserted regulation 4A provides, inter alia, that every distributor of television channel shall, from such date and after such testing and certification, as may be specified by the Authority by order, deploy such conditional access system and subscriber management system which conform to the requirements as specified in the Schedule IX;

6. Now, therefore, the Authority, in exercise of its power under sub-regulation (1) of regulation 4A of the Telecommunication (Broadcasting and Cable) Services Interconnection (Addressable Systems) Regulations, 2017, hereby designates Telecommunication Engineering Centre, Department of Telecommunication, Government of India, as a Testing and Certification Agency, which shall:-

- (a) carry out overall administration, coordination and execution of testing and certification of Conditional Access System (CAS) and Subscriber Management System (SMS) as per the requirements specified in Schedule IX of the Interconnection Regulations 2017;
- (b) notify and maintain Test Schedules and Test Procedures (TSTP) in relation to the requirements specified under schedule IX;
- (c) empanel/declare the list of accredited testing labs that fulfil the requirements for carrying out the testing as per the defined Test Schedules and Test Procedures (TSTP);
- (d) provide Certification for all products tested and certified by the accredited testing labs; and



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